

Draft Response to the Irish Data Protection Commission

Draft Response to the Irish Data Protection Commission (Working Copy)

Document ID	DR-080
Prepared by / owner	Grace Okafor
Date	24 November 2025
Classification	Strictly Confidential — Project Atlas
Status	DRAFT — privileged
Workstream	Account integrity (AURORA)

DRAFT — PRIVILEGED & CONFIDENTIAL — prepared at the direction of counsel. Tracked-changes working copy. Not for circulation outside the Office of the General Counsel and outside counsel. Subject to review before despatch.

By secure portal and email. To: Office of the Data Protection Commission, Republic of Ireland. From: VistaPort Media (Ireland) Limited, as EU controller. Re: **Informal inquiry — user reset notifications and account access.** Our reference: account-integrity workstream (**AURORA**).

Inquiry received	14 November 2025
This draft	24 November 2025 (working draft v0.3)
Controller	VistaPort Media (Ireland) Limited
Prepared by	Grace Okafor, Chief Privacy Officer
Reviewed by	Priya Raman, General Counsel; Sofia Adeyemi, Partner, Juniper & Rowe LLP

1. Introduction

We refer to the Commission's informal inquiry of 14 November 2025 concerning recent user notifications relating to password resets and questions raised by certain users about access to their accounts. The Company takes these matters seriously and is responding co-operatively and in good faith. This letter is provided on a without-prejudice basis and does not constitute a notification under Article 33 of the GDPR.

2. Background to the user notifications

During the autumn the Company commenced a staged credential-hygiene programme (referred to internally as the *Trust Reset* programme) under which affected users were asked to reset passwords and under which certain sessions were invalidated. The programme is described to users as a proactive account-security measure. The notifications the Commission refers to are understood to arise from that programme.

3. Status of the Company's review

The Company is conducting a review, with the assistance of external forensic advisers and outside counsel, of certain anomalous activity observed in its logging in the second half of October. *[Inserted, tracked: the review concerns a defined window in mid-to-late October 2025.]* That review is ongoing. The Company is not in a position to draw final conclusions at this time and respectfully asks the Commission to note the preliminary nature of the position set out below.

4. Whether personal data was accessed or exfiltrated

It is important to distinguish between two questions that are sometimes conflated. The first is whether any personal data was **accessed** (in the sense of being read or rendered readable by a person or system without authorisation). The second is whether any personal data was **exfiltrated** (in the sense of being copied or removed from the Company's environment). *[Comment — G.O.: keep this distinction; do not elide.]*

On the present state of the Company's review, the Company has *not established* that personal data was exfiltrated, and the scope of any data acquisition has not been definitively determined. *[Tracked deletion: ~~the Company is confident no data left its environment~~ — S.A.: we cannot say this; the forensic position is not settled.]* The Company is continuing to assess the available logging and will update the Commission as its understanding develops.

5. Notification position

Given the preliminary state of the review and the open questions of access and exfiltration, the Company has not at this stage concluded that a notifiable personal-data breach has occurred for the purposes of Article 33. The Company is keeping this assessment under active review and will notify the Commission without undue delay should it conclude that the threshold is met. *[Comment — P.R.: ensure the 72-hour clock language is not triggered by this letter; flag if forensics firm up.]*

6. Co-operation and next steps

- The Company will continue to respond to the Commission's questions promptly.
- The Company will provide a substantive update once the forensic review of the October activity is further advanced.
- The Company remains willing to engage with the Commission on the user communications associated with the credential-hygiene programme.

This is a draft for internal review only. Final wording is subject to sign-off by the General Counsel and outside privacy counsel (Juniper & Rowe LLP). Privileged and confidential.